

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2452 of 2001

Kushum Ali

----- Petitioner.

-Versus-

Md. Kashem Ali and others

----- Opposite Parties.

No one appears

----- For the petitioner.

Mr. Abdullah Abu Sayeed, Advocate

----- For the Opposite Parties.

Hard on: 10.11.2016

Judgment on: 12.12.2016

At the instance of the present plaintiff-respondent-petitioner, Kushum Ali, this Rule has been issued calling upon the defendant appellate opposite parties to show case as to why the Judgment and decree dated 29.11.2000 and 07.01.2001 respectively passed by the Subordinate Judge, Manikganj 1st Court, in Title Appeal No. 23 of 1998 reversing the judgment and decree dated 27.11.1997 and 04.01.1998 passed by the Senior Assistant Judge, Manikganj in Title Suit No. 86 of 1996 should not be set aside.

The relevant facts for disposal of this Rule, inter alia, are that the present petitioner as the plaintiff filed the Title Suit No. 86 of 1996 in the court of the learned Senior Assistant Judge, Manikganj Sadar, Manikganj seeking a decree for permanent injunction in order to restraining the present opposite parties as the defendants from entering into the suit land measuring. 28

acres appertaining to S.A. Dag No. 34 R.S. Plot No. 37 Mouja 399 Chowk Gobindrapur under P.S and District-Manikganj.

The plaint case is that the suit land was originally owned by Zaminder named Umesha Nanda Bhattacharya and others and one Mongol Chowkdar got the land thoroughly a Raiyati Pattan, thereafter, he built his homestead thereon. The land was recorded in the S. A. Khatian in his name and he paid rent to the Government. The said Mongol Chowkider died leaving behind two wives and their children. In the R.S. record of right of the land was recorded in the name of plaintiff Kushum Ali, Shaheb Ali and their 5 sisters in course of time. The present plaintiff petitioner remained in an absolute possession upon the suit land but as this suit land is situated near to plot No. 35 owned by the present defendant opposite party with whom he did not have a good relationship. The defendants created trouble upon the peaceful possession of the plaintiff by creating a false deed dated 11.07.1996, therefore, this suit has been filed seeking an order for restraining the defendant opposite parties from creating trouble.

The suit has been contested by the present defendant opposite parties by filling a written statement contending, inter alia that Umesha Nanda Bhattacharya was the original land lord (Zamindar) who transferred land to Mongol and Syed Ali land measuring total 14 decimals of land by creating a registered Pattan Nama on 19.04.1948 and the possession of the land was hand over to them. The said Zamindar also given other land measuring 14 decimals of predecessor of the present defendant

opposite party in the name of Shaheb Ali by creating a registered Pattan Nama on 22.04.1948 and the possession was hand over to him. The above Mongol and Syed Ali transferred their 14 decimals to Shaheb Ali who thereby became owner of 28 decimals of land and he remained in possession after recording his father's name Mongol Chowkidar in the S.A. record of right. Subsequently the land was recorded in the name of Shaheb Ali himself as well as in the name of his brother the present plaintiff petitioner Kulsum Ali and other as the heirs of Mongol Chowkidar. The present defendant opposite parties became own of 15 decimals of land by way of purchase or gift from the successors of Mongol Ali and Syed Ali and also from Shaheb Ali. There is no dispute as to the title of the respective lands and these respective parties are in possession of their respective lands. This suit has been filed without providing any valid cause of action because no threat has been given by the opposite parties to the petitioner for dispossessing him from the land thus prayed to dismiss the case.

After hearing the parties the learned Senior Assistant Judge decreed the suit by his judgment and decree dated 27.11.1997. Being aggrieved the present opposite parties as the appellants preferred the Title Appeal No. 23 of 1998 in the court of learned District Judge, Manikganj which was heard by the learned Subordinate Judge, Manikganj who after hearing the parties allowed the appeal by his judgment and decree dated 29.11.2000. This revisional application has been filed challenging the said judgment and decree and this Rule was issued thereupon.

This Rule has been appearing in the cause list for a long period of time but no one appears to support the Rule one when it is taken up for hearing and also taken up today for delivery of judgment.

However, from the revisional application it appears that the petitioner has taken the ground that the learned Appellate Court's observation that the plaintiff appellant had no exclusive possession in the suit land is totally wrong finding which has occasioned failure of justice. The learned Appellate Court's observation that to strike permanent solution to the dispute, the respondent being plaintiff should have filed a suit for declaration of title is totally bad in law which has occasioned failure of justice.

The Rule has been opposed by the present defendant opposite party No. 1.

Mr. Abdullah Abu Syed, the learned Advocate appearing for the opposite party No. 1 submits that after considering the evidence adduced and produced by the parties the learned trial court found that the suit was filed only praying for permanent injunction but there is a dispute as to the title between the respective parties thus the appellate court lawfully allowed the appeal by setting aside the judgment of the trial court, as such, the impugned judgment is a proper judgment of reversal and this Rule does not has any merit for consideration and the Rule should be discharged.

The learned Advocate also submits that the title suit was filed by the plaintiff petitioner without specifying the land in the

schedule of the plaint which is a fatal defect of the suit and a permanent injunction cannot be imposed on an unspecified land.

The learned Advocate further submits that the learned trial court made an error of law by decreeing the suit because the petitioner never had an exclusive possessing upon the suit land but the learned appellate court below lawfully came to conclusion to allow the appeal considering without schedule the dispute of title for permanent injunction cannot be imposed where the possession and title are not proved. He cited a case reported in 43 DLR(AD)(1991) 215.

Considering the above submissions made by the learned Advocate for the opposite parties and also considering the revisional application filed under section 115 (1) of the Code of Civil Procedure along with its annexures therein, and also considering the lower court records, it appears to me that the present plaintiff petitioner filed the suit for a decree of permanent injunction upon the land measuring 28 decimals in the land mentioned in the plaint of the suit. The above claim of the petitioner has been opposed by the present defendant opposite parties by filling a written statement.

I have carefully examined the plaint and the written statement filed by the parties in support of the respective cases as well as the evidence by way of deposition and by way of documents.

From the given facts of the respective parties the admitted possession is that one Umesh Nanda Bhattacharya and others

were the original owners as the land lord (Zamindar) who settled the suit land by way of Pattan through raiyati. However, there are some disputed areas between the parties because the petitioner claimed that he is the heir of Mongol Chowkidar whereas the present opposite parties claimed themselves as the owners and possessors of the land by way of purchase and gift upon the land measuring 15 decimals of land. The opposite parties claimed that Shaheb Ali got Pattan by himself eventhough land was wrongly recorded in the name of his brother Mongol Chowkidar as such the claim of the plaintiff petitioner upon the land as the successor of Mongol Chowkidar is not valid as the lawful Pattan was given to Shaheb Ali and the record of right should have been in the name of Shaheb Ali alone instead of Mongol Chowkidar. Therefore, the claim of the plaintiff for any restraining order upon the land measuring 28 decimals is not sustainable in law and any injunction order should not be allowed as there is a dispute as to the title of the land.

It is settlement principle of law for any relieve short through a declaration of the court for permanent injunction under the Specific Relief Act, 1877 the clement has to prove an exclusive possession upon the suit land as well as the nature of title which empowers him to be in possession of the suit land have to be proved on the standard of balance of provability. In the instant case, I have examined the exhibits and depositions in support of the parties and found that both the parties are in possession upon the same Dag claiming through separate nature of entitlement,

therefore, as there are disputes between the parties as to the ownership of the land a permanent injunction is not a proper relief for a party. In this regard our Apex court found in a case of Rafizuddin Ahmed Vs. Mongla Barman and others reported in 43 DLR (AD) (1991), 215 which reads as follows:

“Permanent injunction-its scope in a dispute over landed property-In a simple suit for permanent injunction with regard to a disputed landed property the relief is available to a person who is in possession. The Court may enquire incidentally into the respective claims of the parties to the suit for determining whether the plaintiff is in possession of the disputed property and entitled to the specific relief of permanent injunction.

If the dispute involves complicated questions of title the plaintiff must establish his title by filing a regular suit for declaration of title. A simple suit for permanent injunction should not be allowed to be used as a testing device for ascertainment of title. In this case the plaintiff assails the presumption of the C.S Khatian, a kind of exercise the Court in a simple suit for permanent injunction should ordinarily avoid.”

Now let me examine the judgment and decree passed by the lower court as the learned trial court who came to a conclusion to decree the suit on the basis of the following findings:

“বাদী নালিশী ভূমি সম্পর্কিত প্রদর্শনী নং- ৪ সিরিজ খাজনার দাখিলা দাখিল ক-রন। বাদী (পি/ডব্লু -১), পি/ডব্লু-২, পি/ডব্লু-৩, পি/ডব্লু-৪ এর প্রদত্ত মৌখিক সাক্ষ্য প্রমানাদি এবং প্রদর্শনী নং ৪ সিরিজ দালিলিক সাক্ষ্য প্রমানাদি দ্বারা নালিশী ভূমির নিরঙ্কুশ দখল সন্ধেহাতীতভাবে প্রমান করিতে সমর্থ হয়। পক্ষান্তরে, উত্তরকারী ১/২নং বিবাদীপক্ষ নালিশী ভূমির দখল দালিলিক ও মৌখিক সাক্ষ্য প্রমানাদি দ্বারা প্রমাণ করি-ত ব্যর্থ হয়।

বাদী আরজী ১৪০৩ বাংলা স-নর শ্রাবন মা-সর শেষভা-গ মূল বিবাদীগন বাদী-ক নালিশী ভূমি হই-ত বেদখ-লর হুমকি ও ভীতি প্রদর্শন করার সময় হই-ত অত্র মোকদ্দমার নালিশের কারণ উপজাত হয় ম-র্ম উ-ল্লখ ক-রন।

পি/ডব্লু -১ তাহার জেরায় উ-ল্লখ ক-রন যে, বিবাদীগন ১ বৎসর পূ-র্ব বাদী-ক নালিশী ভূমি হই-ত বেদখল করার হুমকি প্রদান ক-র। পি/ডব্লু -১ অত্র মোকদ্দমার নালিশের কারণ প্রমান করে। উপরোক্ত যাবতীয় আলোচনার আলোকে আমার অভিমত ও সিদ্ধান্ত এই যে, বাদী অত্র মোকদ্দমা সন্ধেহাতীতভাবে প্রমান করি-ত সমর্থ হয়।”

However, the learned Appellate court below allowed the appeal by setting aside the judgment and decree passed by the learned trial court on the basis of the following findings:

“সামগ্রিক বিষয় পর্যালোচনা করিয়া আপীল আদালত ম-ন ক-রন যে, বাদী ও বিবাদীর ম-ধ্য উদ্ভূত দ্বন্দ্বত স্থায়ী সমাধান করি-ত হই-ল নালিশী জমি বাবদ স্বত্ব সংক্রান্ত বিষয়ে বিচার হওয়া একান্ত প্রয়োজন। কিন্তু বাদী পক্ষ এই ক্ষেত্রে শুধু চিরস্থায়ী নিষেধাজ্ঞার প্রার্থনায় মোকদ্দমা আনয়ন করায় মূল মোকদ্দমার প্রোপার এডজুডি-কশ-নর জন্য ও কার্যকরী ডিএল প্রদা-নর ক্ষে-এ জটিলতার সৃষ্টি হইয়া-ছ। আপীল আদালত ম-ন ক-রন যে, যে-হতু নালিশী জমি-ত বিবাদী প-ক্ষর স্বত্ব দখ-লর সুস্পষ্ট দাবী রহিয়া-ছ, তদ-হতু নালিশী জমি বাবদ স্বত্ব সাব্য-স্হ চিরস্থায়ী নি-ষধাজ্ঞার অথবা আবশ্যক বো-ধ স্বত্ব সাব্য-স্হ বন্ট-নর ডিএল প্রার্থনায় মূল মোকদ্দমা আনয়ন করা একান্ত জরুরী ছিল। এই সকল বাস্তব পেক্ষাপ-ট ও সামগ্রিক সাক্ষ্য প্রমানাদি বি-শ্লেষণ না করিয়া বিজ্ঞ নিম্ন আদালত যে রায় ও ডিএল প্রদান করিয়া-ছেন তাহা দ্বারা বিবাদমান পক্ষগ-নর ম-ধ্য ন্যায় বিচার নিশ্চিত করা সম্ভব হয় নাই। যেহেতু আলোচ্য পেক্ষাপটে শুধু মাত্র চিরস্থায়ী নিষেধাজ্ঞার ডিএল প্রার্থনায় মূল মোকদ্দমা আনয়ন করা সংগত হয় নাই এবং যেহেতু অত্র আপীল মনজুর করিবার অনুকূ-ল পর্যাণ্ত কারণ রহিয়া-ছ, তদহেতু অত্র আপীল মনজুর পূর্বক নিম্ন লিখিত আ-দশ প্রদান সমীচীন বলিয়া ম-ন করি।”

I have carefully examined the judgment and decree in the present case, I am of the view that the learned trial only discussed about the transfer of the land in question but failed to take into account the matter of title upon the land before settling the matter of decree for permanent injunction, therefore, the trial court failed to appreciate the facts of the suit in front of him. However the learned appellate court found that if there is any dispute as to the title a permanent injunction cannot be given on the basis upon a purported claim of possession, accordingly I consider that this court does not need any interfere upon the impugned judgment and decree passed by the appellate court below as the said court rightly set aside the judgment and decree of the learned trial court.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of maintain statusquo in respect of the possession of the suit land including homestead is hereby recalled and vacated,

The Office is directed to communicate this Judgment and order to the concerned court immediately and office is directed to send down the Lower Court Records at once.